

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition (>SAT)

Acquisition Plan Action ID: 36C250-26-AP-0477

1. **Contracting Activity:** Department of Veterans Affairs, VISN 10, Cincinnati VA Medical Center, 3200 Vine St, Cincinnati, OH 45220. NCO 10 Contracting. 2237 No.: 539-26-1-6905-0004
2. **Nature and/or Description of the Action Being Processed:** Site Security Updates (Project No. 539-22-208). The general scope of this project is to enhance and update the physical and personnel security of the site. The work involves renovation for improving infrastructure and personnel security in the main hospital, CLC, utility plant, Bldg. 3 and parking garage. Work includes demolition, alterations and general construction of electrical systems, telecommunications, and infrastructure. Security gates, card readers, fencing, walls, ceilings, piping and other devices will be modified or added to enhance the security features of the facility.

The independent government estimate (IGE) for the total project is \$XXXXXX.

The justification herein is for sixteen electronic card readers and support systems for six locations.

3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The requirement calls for the installation of card readers at several locations. Remote card readers are electronically integrated to the locking mechanisms of gates and doors to restrict or limit access. Government issued identification or access cards essentially serve as keys. Unlike traditional locks and keys, card readers can be controlled remotely by police or hospital staff to allow or restrict access based on a variety of conditions. Remote card readers limit personnel access by allowing only staff with government issued identification cards and approvals to access restricted areas. The card readers must be programmable so that access can be limited based on different criteria such as time of day. Additionally, in the event of an emergency, the card readers can be remotely disabled, thus locking doors and gates.

The salient characteristics of the required remote card readers include, but are not limited to:

- Compatibility with the existing control system,
- RFID Technology to allow for contactless entry,
- Tamper resistance,
- A short proximity range of the sensor in relation to the card,
- Encryption and secure communications to prevent unauthorised access, and
- Durability to environmental and physical conditions where installed.

Of paramount concern to this acquisition is that new card readers must be compatible with the existing system to ensure operability.

This acquisition is for the following items and quantities necessary to meet agency needs:

- Network Controllers (7)
- Network Power Supplies (6)
- Door Power Supplies (6)
- PIV Readers (16)

The total estimated cost of the brand name items are: \$XXXXX.

4. Statutory Authority Permitting Other than Full and Open Competition:

- (X) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
 () (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
 () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
 () (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
 () (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
 () (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
 () (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

Johnson Controls International ("JCI") Electronic Access Control (EAC) equipment is currently used by the campus to remotely control access to the facility and restricted areas. The JCI system and devices monitor and control over 100 existing card readers throughout the campus. The facility has an existing contract with JCI to provide technical support and service to maintain the electronic access control equipment.

This is a brand name justification because the features of the JCI product are essential to the Government's requirement. Like other highly specialized electronic equipment manufacturers, JCI devices, software, and hardware use propriety technologies and patents that will not support or fully integrate with devices manufactured by other manufacturers. It is essential to the agency that any new access control equipment integrate fully with the existing JCI system.

Remote access control devices made by other manufacturers will not integrate fully with the existing JCI system and would undermine the ability of the staff to monitor and manage access control throughout the facility. It is for these reason why full and open competition will not meet agency requirements and a brand name justification is necessary.

Accordingly, JCI is the only firm capable of providing the supplies and services described in paragraph three without the Veterans Health Administration experiencing substantial duplication of cost that could not be expected to be recovered through competition and unacceptable delays in fulfilling its requirements.

For the above reasons, the Government has determined the use of a brand-name

description for the JCI card readers is essential to the requirement, thereby precluding consideration of a product manufactured by another company.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** This brand-name description will not hinder the competition pool for the construction solicitation that is set-aside for a SDVOSB entity. Any interested and capable construction businesses may procure the cited products from a variety of different JCI suppliers. The card readers may be installed by any competent tradesman. It is only the programming and connecting of the card reader to the EAC system that must be performed by a JCI-certified technician.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** This brand name request represents a small portion of the overall construction requirement. Since there is no restriction on bidders for the construction, the contracting officer expects to receive multiple bids from a variety of sources. The anticipated price will be considered fair and reasonable if it is consistent with the government estimate. A fair and reasonable determination may also be made if multiple bids are received which indicates adequate price competition exists. As a firm fixed price contract, certified cost or pricing data will not be required. The steps taken to ensure that the price is fair will include analysis of the government estimate and the presence of at least two bids that would indicate competitive forces are in effect.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** This acquisition is for construction and cannot be satisfied with commercial items or services. A query of the SBA Dynamic Small Business Database reveals that there are 3,781 SDVOSB firms with the NAICS code 236220 (Commercial and Institutional Building Construction). The government plans to solicit this requirement as a full and open competition, after exclusion of source, set aside for SDVOSB socio-economic concerns. Two or more SDVOSB firms are expected to prepare bids for this solicitation; therefore, the VA Rule of Two is met. Any interested firm is able to negotiate pricing from a variety of JCI suppliers or JCI directly. This will promote competition among interested firms.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:**
To avoid a brand-name request, the facility would need to solicit the replacement of all devices without specifying a manufacturer. However, to do this would be wasteful because more than 100 existing electronic entry access devices do not require replacement or upgrade at this time. Additionally, procuring devices from another system or manufacturer would result in the facility having two entry control access systems. This would be a duplication and administrative burden to the personnel who actively monitor the entry control access program. Replacing all the devices would unnecessarily increase the time to complete this project and adversely burden the medical facility and the treatment of its patients.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** None.
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** For the overall project there is no barrier to competition. For the brand name

justification, there is nothing that can be done at this time because only sixteen devices are being added to the system. Thus, for the reasons of safety, product integration, operability and warranty, a brand name justification is necessary to fulfill the Government's needs. In the future, if the facility needs to upgrade the entire electronic access system, the agency will identify the salient characteristics of the system and solicit the acquisition without a brand-name restriction.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

ZACHARY
SCHMIDT

Digitally signed by
ZACHARY SCHMIDT
Date: 2026.02.26
16:41:54 -05'00'

Name: Zachary Schmidt
Title: Chief of Engineering
Facility: Cincinnati VAMC

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)

- a. Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

LUKE
TURNER

Digitally signed by LUKE
TURNER
Date: 2026.03.02
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Name: Luke Turner
Title: Contracting Officer
Facility: Cincinnati VAMC / NCO 10